

IN THE UNITED STATES DISTRICT COURT FOR THE
MIDDLE DISTRICT OF ALABAMA

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LEORA P. HACKETT, CLK
U.S. DISTRICT COURT
MIDDLE DISTRICT ALA

JASON STOLTE,
PLAINTIFF,

VS.

DAVID DAVIS FARMS, INC., a corporation;
MARTIN PHILLIP HORN, an Individual,
DEFENDANTS.

CIVIL ACTION NO.

2:07-CV-521-WKW

DEMAND FOR JURY TRIAL

COMPLAINT

1. Plaintiff, JASON STOLTE, is an individual resident citizen of Minneapolis, Minnesota and has been an individual resident citizen of Minneapolis, Minnesota at all material times referred to herein.

2. The Defendant, DAVID DAVIS FARMS, INC., is a corporation incorporated in Baldwin County, Alabama, and doing business throughout the state of Alabama at all material times referred to herein.

3. The Defendant, MARTIN PHILLIP HORN, is an individual resident citizen of Baldwin County, Alabama and has been an individual resident citizen of Baldwin County, Alabama at all material times referred to herein.

4. Jurisdiction of this Court is invoked pursuant to 28 U.S.C. §1332, et seq. by reason of the diverse citizenship of the parties and the amount in controversy. Venue is proper in this district as the incident giving rise to these claims arose within this district.

5. The Plaintiff avers that heretofore on, to-wit, the 6th day of January, 2006, the Plaintiff

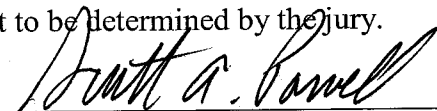
was operating a motor vehicle on Interstate 65, at its intersection between County Road 40 and County Road 61, in Autauga County, Alabama, when he was caused to strike a tire and wheel which had fallen from an eighteen wheeler being operated by the Defendant, MARTIN PHILLIP HORN, and was lying in the roadway in the path of the Plaintiff. The Plaintiff's vehicle collided with the wheel and tire and came to rest in the median on the interstate highway.

6. During the collision, Plaintiff was thrown in and about the interior of his vehicle and caused to suffer the following injuries and damages: He was bruised and contused about his body and extremities; he was caused to suffer closed head injuries; his speech patterns and cognitive processes were injured and damaged and were permanently injured and permanently damaged; he was caused to suffer physical pain and mental anguish and will be caused to suffer physical pain and mental anguish in the future; he was caused to lose wages from his employment and his power and capacity to work and earn money in the future was permanently impaired; he was caused to spend monies for doctors, hospitals, medicine and x-ray personnel in and about his efforts to cure his said injuries; he was unable to carry out his usual and normal activities of life and his power and capacity to carry out his usual and normal activities of life in the future was permanently impaired; and he was otherwise injured.

7. Plaintiff avers that all of his aforesaid injuries and damages were proximately caused by the negligence and/or wanton misconduct of the defendant, MARTIN PHILLIP HORN, while acting and working within the line and scope of his employment for the defendant, DAVID DAVIS FARMS, INC. As a proximate cause of the individual and combined and concurring negligence and wanton misconduct of the defendants, plaintiff was injured as set forth above.

8. As damages, the Plaintiff claims of the Defendants a sum in excess of Seventy-Five

Thousand Dollars (\$75,000.00) in an amount to be determined by the jury.



SCOTT A. POWELL, ASB-7523-L60S
Attorney for Plaintiff

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PLAINTIFF DEMANDS TRIAL BY STRUCK JURY.



OF COUNSEL

Plaintiff's Address:

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St. Louis Park, Minnesota 55416

Defendants' Addresses:

MARTIN PHILLIP HORN

25975 County Road 27, Lot T8

Daphne, Alabama 36526

DAVID DAVIS FARMS, INC.

25630 County Road 27

Daphne, Alabama 36526